Measure K

City of Rohnert Park

Measure Question

Simple Majority Needed to Pass

Rohnert Park Financial Viability, Community Health/Safety Measure. To maintain 911 response/fire protection/wildfire preparedness; protect local drinking water; keep parks clean/safe; prevent property crime/burglary/public safety officer reductions; repair streets/potholes; and other general city services; shall the measure, establishing a half-cent local sales tax, providing approximately $5,500,000 annually for locally controlled funding that cannot be taken by the state, until ended by voters, requiring audits/public spending disclosure, be adopted?

What Your Vote Means

YES	NO
A "YES" vote is a vote to approve the tax.	A "NO" vote is a vote against the tax.

For and Against Measure K

FOR	AGAINST
Gregory Nordin Former Mayor, Rohnert Park	Gina Belforte Former Mayor Rohnert Park
Pat Miller Rohnert Park Realtor	Joseph T. Callinan Former Mayor Rohnert Park
Frankie Lemus Rohnert Park Restaurant Owner	Amy O. Ahanotu Former Mayor Rohnert Park
Andre Bailey Trustee, SRJC	Pam Stafford Former Mayor Rohnert Park
Jerrod Marshall Public Safety Officers Association	



Local Ballot Measure: K

City Attorney's Impartial Analysis of Measure K

California Revenue and Taxation Code section 7285.9 authorizes the City Council of the City of Rohnert Park to levy a General Transactions and Use Tax (*i.e.*, sales tax) if approved by a majority of the City's voters. The City Council of the City of Rohnert Park placed Measure K on the November 3, 2026, ballot which if approved by a majority of the City's voters would enact Ordinance No. 998 authorizing a 0.5% (1/2¢) transactions and use tax in the City of Rohnert Park. A "transactions and use tax" is commonly referred to as a "sales tax." If approved, Measure K would impose a City tax that adds 1/2¢ to the cost of a $1.00 tangible personal property item purchased in Rohnert Park. The Measure adds a new Chapter 3.22, entitled, "Transactions and Use Tax of 2026" to Title 3 of the Rohnert Park Municipal Code. The tax would be assessed on the sale of tangible personal property and the storage, use, or other consumption of such property. This tax would be a general tax, meaning that revenues raised from the tax can be used for any general municipal purpose and will be deposited in the City's general fund.

The California Department of Tax and Fee Administration would administer the tax. The tax would be paid in addition to existing sales taxes and would be collected at the same time and in the same manner as existing sales taxes. Both City residents and visitors would pay this tax on retail sales activity in Rohnert Park. Certain necessities of life, such as groceries or prescription medicine, would be exempt from the tax. However, the exact purchases subject to the tax would be determined by state law. By law, all revenues raised by the Measure would belong to the City of Rohnert Park and could not be taken by the State or any other agency.

The City estimates that Measure K, if approved, would generate approximately $5,500,000 in annual tax revenue, but the actual tax revenue will vary based on the level of purchases occurring in Rohnert Park. The proceeds of the tax would be subject to an annual audit requirement where the results are presented annually to the City Council and available for public review and may also be combined with the City's annual financial audit.

In order for Measure K to pass, the City's voters must approve the Measure by a simple majority vote (50% + 1) vote.

A "YES" vote is a vote to approve the tax. A "NO" vote is a vote against the tax.

/s/ Michelle Marchetta Kenyon
City Attorney
City of Rohnert Park

Continue to next page for arguments

Local Ballot Measure: K

Arguments and rebuttals are the opinions of the authors. They are printed exactly as submitted, including errors.

Argument in Favor of Measure K

Vote Yes on Measure K — Keep Rohnert Park Safe and Strong.

Measure K protects the services our community depends on. The fire truck that arrives on time, the officer who patrols our neighborhoods, quality neighborhood parks, and safe streets– keeping our property values and quality of life strong.

When you have an emergency, seconds count. We are fortunate to have high-quality public safety officers, cross-trained as police officers and firefighters, which is critical to maintaining 911 response times. Measure K will help prevent cuts to public safety in Rohnert Park.

Our city's 28 parks and recreation facilities are aging and under strain from daily use. Restrooms need updating, aging electrical, gas, and sewer lines need replacing, and safety lighting needs to be improved in children's playgrounds, so they have safe places to play. Our public safety services, streets, water services, and parks need real investment.

Measure K is responsible and transparent. Measure K requires strict fiscal accountability through mandatory annual independent financial audits and full public disclosure of all spending. Essentials like groceries and medicine are exempt.

Every dime raised by Measure K stays right here in Rohnert Park, and ensures out-of-town visitors pay their share of police, fire, street repairs, and other services when they are in our city.

By law, no funding can be taken by Sacramento or the County.

Measure K keeps Rohnert Park safe and strong by targeting the things that matter. It will maintain 911 emergency response, fire protection, and wildfire preparedness; preserve public safety patrols to prevent burglaries and property crime; help repair streets and potholes; protect our local drinking water sources; and keep our neighborhood parks clean and safe for kids and families.

Residents deserve safe streets, reliable emergency response, and well-maintained neighborhoods.

Join public safety officers, small business owners, and neighbors – Vote Yes on K.

/s/ Gregory Nordin
Former Mayor, Rohnert Park

/s/ Pat Miller
Rohnert Park Realtor

/s/ Frankie Lemus
Rohnert Park Restaurant Owner

/s/ Andre Bailey
Trustee, SRJC

/s/ Jerrod Marshall
Public Safety Officers Association

Rebuttal to Argument in Favor of Measure K

Don't Be Misled. Vote No on Measure K.

Measure K supporters claim the City won't be able to provide police, fire, parks and safe streets without a new tax. Yet, they provide no data to support those claims.

Instead of threatening cuts to public safety, why not protect these services by exhausting every other option first? Measure K cannot guarantee funding for specific services because its funds are unrestricted.

The City reports $240 million in deferred infrastructure maintenance. Measure K is not the solution. At approximately $5.5 million annually, it would take more than 43 years to raise enough revenue to address this need alone.

The City receives approximately $15.5 million annually from Graton Rancheria. For 16 consecutive years, the City balanced expenses with revenues. What changed in the last two years that requires taxpayers to bail out the City?

One reason may be spending. The City has hired 35 new employees since laying off 27 during COVID, while its population has grown by less than 1%. Current expenses have not been reduced. Before asking taxpayers for more money, the City should demonstrate that it has exhausted reasonable alternatives.

There is no Citizen Oversight Committee for Measure K. While fiscal reports are required, citizens have no independent committee overseeing how this unrestricted revenue is spent.

And remember: Measure K is a permanent tax increase. It does not expire unless voters repeal it.

Hold the City accountable. Vote No on Measure K.

/s/ Gina Belforte
Former Mayor Rohnert Park

/s/ Joseph T. Callinan
Former Mayor Rohnert Park

/s/ Amy O. Ahanotu
Former Mayor Rohnert Park

/s/ Pam Stafford
Former Mayor Rohnert Park

Local Ballot Measure: K

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Argument Against Measure K

Vote No on Measure K

Four former Rohnert Park mayors—Joe Callinan, Pam Stafford, Amy Ahanotu, and Gina Belforte—have reviewed Measure K and oppose this tax increase. Based on our combined experience leading the City through major challenges, including the 2008 Great Recession and the COVID-19 pandemic, we believe Rohnert Park can better manage its finances while continuing to provide quality public services.

The City balanced its budget for 16 consecutive years, demonstrating responsible fiscal management. Before asking residents to pay more, the City should fully explore alternatives and prioritize existing resources.

Measure K would permanently increase the local sales tax from 9.75% to 10.25%. It is a general tax, meaning the revenue is not legally dedicated to specific projects and may be used for any lawful municipal purpose.

Sales taxes place a greater burden on working families, seniors, and residents living on fixed incomes.

The City projects Measure K will generate approximately $5.5 million annually, yet its own published materials project a $15 million spending deficit in future years. This tax alone will not solve that problem.

The City has not provided financial projections showing how future Downtown development will affect tax revenues. Approving a permanent tax before that information is available is premature.

Deferred maintenance should be addressed through a transparent, long-term infrastructure plan with clear priorities. Before approving a permanent tax increase, voters should expect stronger accountability, greater transparency, and careful stewardship of public funds.

We respectfully urge you to Vote No on Measure K.

/s/ Gina Belforte
Former Mayor Rohnert Park

/s/ Joseph T. Callinan
Former Mayor Rohnert Park

/s/ Amy O. Ahanotu
Former Mayor Rohnert Park

/s/ Pam Stafford
Former Mayor Rohnert Park

Rebuttal to Argument Against Measure K

These four former officials claim they balanced their budget every year, but the real question is how they did it. For 12 years, their administrations balanced budgets using unrealized projected income, all while over $200 million in critical street, water, and public safety infrastructure repairs went unaddressed. That is the real record: deferred maintenance stacking up while former officials called the books balanced.

Rohnert Park residents value community. We work hard and step up for neighbors when needed –supporting each other through good times and bad. Yet, the same former mayors who let our infrastructure needs fall behind, while counting on unrealized income to bail out their budgets, now tell us Rohnert Park cannot afford to fix what they left broken. The downtown project would again be relying on projected income. Rohnert Park cannot afford another decade of that approach.

Measure K is a transparent, responsible solution that breaks that cycle with locally controlled funding that can only be spent right here in Rohnert Park. Measure K requires independent annual audits and full public disclosure of every dollar spent. Essentials like groceries, prescription medications, and diapers are exempt from Measure K.

Measure K helps fund what Rohnert Park needs: 911 emergency response, fire protection, public safety patrols, street and pothole repairs, drinking water protection, and clean, safe parks. These investments protect home values and the quality of life we all rely on.

Join trusted neighbors, small business owners, and community leaders - Vote Yes on K and Keep Rohnert Park Strong and Safe.

/s/ Miriam Pengel
Pickleball Coach, Community Volunteer

/s/ Andrew Smith
Lieutenant, Public Safety

/s/ Lori Tapian Street
Small Business Owner

/s/ Martín Avila
SEIU Auto Mechanic

/s/ Aaron Johnson
Retired Public Safety Officer

Local Ballot Measure: K

Full Text of Measure K

ORDINANCE NO. 998

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF ROHNERT PARK, CALIFORNIA, ADDING A NEW CHAPTER 3.22 TO TITLE 3 OF THE ROHNERT PARK MUNICIPAL CODE WHICH ESTABLISHES A TRANSACTIONS AND USE TAX AT THE RATE OF 0.5%

WHEREAS, pursuant to Article XIIIC of the California Constitution, Section 53720 et seq. of the California Government Code, the City has the authority to levy a general tax, including, but not limited to, increasing an existing general tax; and

WHEREAS, Article XIIIC, Section 2, of the California Constitution requires that the election at which a general tax increase is submitted to the electorate shall be consolidated with a regularly scheduled general election for members of the governing body of the local government, except in cases of emergency declared by a unanimous vote of the governing body; and

WHEREAS, Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

WHEREAS, Revenue and Taxation Code Section 7285.9 requires that any ballot measure/ordinance establishing or increasing a transactions and use tax must be approved by a 2/3 vote of all members of the City Council and by a majority vote of the qualified voters of the City voting on the ballot measure; and

WHEREAS, by Resolution No. 2026-062, the City Council approved this Ordinance by a two-thirds vote of all its members; and

WHEREAS, Tuesday, November 3, 2026, is the date of the general municipal election, which has been consolidated with the statewide general election occurring on the same date, at which members of the City Council will be elected;

WHEREAS, this Ordinance establishes a transactions and use tax at the rate of 0.5% by adding a new Chapter 3.22, entitled "Transactions and Use Tax of 2026", to Title 3 of the Rohnert Park Municipal Code.

NOW, THEREFORE, the People of the City of Rohnert Park, California, do hereby ordain as follows:

Section 1. Recitals. The recitals set forth above are true and correct and are incorporated herein by this reference.

Section 2. New Chapter. Chapter 3.22, entitled "Transactions and Use Tax of 2026", is hereby added to Title 3 of the Rohnert Park Municipal Code as follows:

Chapter 3.22. Transactions and Use Tax of 2026

Section 3.22.010. – Title.

This chapter shall be known as the "Transactions and Use Tax of 2026". The City of Rohnert Park hereinafter shall be called "City." This chapter shall be applicable in the incorporated territory of the City.

Section 3.22.020. – Operative Date.

"Operative Date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this chapter. For purposes of Revenue and Taxation Code section 7265, this chapter shall be considered adopted on the date of the election in which it is approved by the qualified voters of the City.

Section 3.22.030. – Purpose.

This chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this chapter.

Section 3.22.040. – Contract with State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.

Section 3.22.050. – Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate 0.5% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this chapter.

Section 3.22.060. – Place of Sale.

For the purposes of this chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales

are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

Section 3.22.070. – Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this chapter for storage, use or other consumption in said territory at the rate of 0.5% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

Section 3.22.080. – Adoption of Provisions of State Law.

Except as otherwise provided in this chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this chapter as though fully set forth herein.

Section 3.22.090. – Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California;

2. The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this chapter.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the District" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

Section 3.22.100. – Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this chapter.

Section 3.22.110. – Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this chapter.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

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C. There are exempted from the use tax imposed by this chapter, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this chapter.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this chapter.

5. For the purposes of subparagraphs (3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

Section 3.22.120. – Amendments.

All amendments subsequent to the effective date of this chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this chapter, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this chapter.

Section 3.22.130. – Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

Section 3.22.140. – Severability.

If any provision of this chapter or the application thereof to any person or circumstance is held invalid, the remainder of the chapter and the application of such provision to other persons or circumstances shall not be affected thereby.

Section 3.22.150. – Effective Date.

Pursuant to Elections Code Section 9217, this chapter shall be considered adopted on the date that the City Council declares that the voters of the City of Rohnert Park have approved Ordinance No. 998 by a vote of no less than a majority of the votes cast by the electors voting at the election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

Section 3.22.160. – Termination Date.

The tax imposed by this chapter shall remain in effect until ended by voters.

Section 3.22.170. – General Tax.

The tax imposed by this chapter is a general tax. Accordingly, the proceeds from the tax imposed by this chapter shall be for unrestricted general revenue purposes of the City and shall be placed into the General Fund of the City.

Section 3.22.180. – Amendment by City Council.

Pursuant to Elections Code Section 9217, the City Council has the right and authority to amend this chapter, to further its purposes and intent (including but not limited to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution.

Section 3.22.190. – Annual Audit.

The proceeds resulting from this transactions and use tax shall be subject to the same independent annual audit requirements as other general fund revenue. The independent auditor's report, which shall include an accounting of the revenues received from and expenditures made from the transactions and use tax, will be presented annually to the City Council and made available for public review. Further, such independent auditor's report and such presentation thereof to the City Council may be combined with the City's annual financial audit.

Section 3. <u>Council Authority to Amend.</u> Pursuant to Elections Code Section 9217, the City Council has the right and authority to amend this Ordinance, to further its purposes and intent (including but not limited

Full Text of Measure K (Continued)

to amendment for more efficient administration as determined by the City Council), in any manner that does not increase a tax rate, or otherwise constitute a tax increase for which voter approval is required by Article XIII C of the California Constitution.

Section 4. Environmental Compliance. The City finds the adoption of this Ordinance is not subject to the California Environmental Quality Act ("CEQA"), because the enactment of this Ordinance: (1) does not constitute a "project" as defined by CEQA pursuant to California Code of Regulations, Title 14, Sections 15060(c)(3) and 15378; (2) will not result in a direct or reasonably foreseeable indirect physical change in the environment pursuant to California Code of Regulations, Title 14, Section 15060(c)(2); and (3) is covered by the general rule that CEQA applies only to projects which have the potential for causing a significant effect on the environment pursuant to California Code of Regulations, Title 14, Section 15061(b)(3). This Ordinance establishes a transactions and use tax, provides for the creation of City funding mechanisms and City fiscal activities, includes organizational or administrative activities of government which will not result in direct or indirect physical changes to the environment, and does not involve any commitment to any project which may result in a potentially significant physical impact on the environment.

Section 5. Severability. Should any section, subsection, paragraph, sentence, clause, or phrase of this Ordinance be declared unconstitutional or invalid for any reason, such declaration shall not affect the validity of the remaining portions of this Ordinance.

Section 6. Date of Adoption; Effective Date. Pursuant to Elections Code Section 9217, this Ordinance shall be considered adopted on the date that the City Council declares that the voters of the City of Rohnert Park have approved this Ordinance by a vote of no less than a majority of the votes cast by the electors voting at the General Municipal Election held on Tuesday, November 3, 2026, and shall go into effect ten (10) days thereafter.

Section 7. Execution. The Mayor shall sign this Ordinance and the City Clerk shall attest and certify to the passage and adoption of this Ordinance if a majority of the voters voting in the City's general municipal election on November 3, 2026, approve it.

Section 8. Publication. The City Clerk shall cause this Ordinance to be published in the manner required by law.

PASSED, APPROVED AND ADOPTED BY THE PEOPLE OF THE CITY OF ROHNERT PARK at the General Municipal Election held on November 3, 2026.

APPROVED

_____
Emily Sanborn, Mayor

ATTEST

_____
Sylvia Lopez Cuevas, City Clerk